

CV-26-001740 ESPINOZA, FELIX ANTONIO SIFONTES vs NORCAL CHICKEN INC – Defendant Nor-Cal Chicken, INC.’s Motion to Compel Arbitration and to Strike Class Claims – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court finds that Defendant has demonstrated the existence of an agreement to arbitrate which encompasses the claims at issue herein. (Code Civ. Proc. § 1281.2.) Further, the Court further finds that the subject agreement contains a valid delegation clause granting the arbitrator the exclusive authority to determine the issues of interpretation, applicability, and enforcement, which encompasses the unconscionability arguments raised by Plaintiff herein.(Aanderud v. Superior Court (Vivint Solar Developer, LLC) (2017) 13 Cal.App.5th 880.) With regard to Plaintiff’s challenge to the delegation clause, the Court finds that he has demonstrated, at most, a slight degree of procedural unconscionability attendant with the manner in which the onboarding process was presented by the employer. However, the Court finds no substantive unconscionability in connection with the delegation clause herein. Therefore, Plaintiff’s challenge fails, and all remaining issues raised in the papers herein shall be submitted to the arbitrator. All remaining proceedings are stayed pending completion of the arbitration. (Code Civ. Proc. § 1281.4.)

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